

STATE OF MICHIGAN JUDICIAL CIRCUIT COUNTY	ORDER REGARDING CUSTODY AND PARENTING TIME FOLLOWING ALTERNATIVE DISPUTE RESOLUTION ☐ Temporary ☐ Final	CASE NO. and JUDGE
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Court address _____

Court telephone no. _____

Plaintiff's name, address, and telephone no.
Plaintiff's attorney, bar no., address, and telephone no.

v

Defendant's name, address, and telephone no.
Defendant's attorney, bar no., address, and telephone no.

Third party's name, address, and telephone no.
Third party's attorney, bar no., address, and telephone no.

Date: _____

Judge: _____

1. This order is prepared after friend of the court alternative dispute resolution.

- ☐ This is a recommended order. This recommended order will be presented to the court for entry unless a party objects by filing a written objection within 21 days after the date of service. A hearing must be scheduled on the objection.
- ☐ This order is effective immediately. A party may object to the order by filing an objection within 21 days after the date of service, and by scheduling a hearing on the objection. If an objection is filed, this order will still remain in effect until further order of the court.
- ☐ This order is effective immediately upon entry. During the course of the alternative dispute resolution process the parties reached the agreement set forth in this order. The parties have waived the right to object to entry of the order. If a party has objections to the order, they must file a motion to set the order aside once it enters.

THE COURT FINDS:

- ☐ 2. A request for establishment of custody, parenting time, and support was filed on _____ .
Date
- ☐ 3. A motion requesting a change in custody, parenting time, and support was filed on _____ .
Date
 - ☐ a. A change of circumstances ☐ does ☐ does not exist that warrants a review of custody or parenting time.
 - ☐ b. Proper cause ☐ does ☐ does not exist that warrants a review of custody or parenting time.
 - ☐ c. A substantial change of circumstances exists that warrants a modification of the support order.
- ☐ 4. A response was filed on _____ .
Date

☐ 5. It ☐ is ☐ is not in the best interests of the child(ren) to ☐ establish ☐ change
☐ custody ☐ parenting time.

☐ 6. It is in the best interests of the child(ren) to dismiss the motion.

IT IS ORDERED:

☐ 7. The motion regarding custody, parenting time, and support is dismissed. The prior order remains in effect.

☐ 8. Custody is ☐ established ☐ changed as follows:

Name(s) of child(ren): _____

☐ Joint legal to ☐ plaintiff. ☐ defendant. ☐ third party.

Unless otherwise agreed, a parent whose custody or parenting time of a child is governed by this order shall not change the legal residence of the child except in compliance with MCL 722.31.

☐ Joint physical to ☐ plaintiff. ☐ defendant. ☐ third party.

☐ Sole legal to ☐ plaintiff. ☐ defendant. ☐ third party.

☐ Sole physical to ☐ plaintiff. ☐ defendant. ☐ third party.

☐ Other (specify):

9. Parenting time is ☐ established ☐ changed as follows:

Explain in detail what the court has ordered.

10. The parents shall cooperate with respect to a child so as, in a maximum degree, to advance a child's health, emotional, and physical well-being and to give and afford a child the affection of both parents and a sense of security. Neither parent will, directly or indirectly, influence a child so as to prejudice a child against the other parent. Each parent will endeavor to guide a child so as to promote the affectionate relationship between a child and the other parent. The parties will cooperate with each other in carrying out the provisions of this order for a child's best interests. Whenever it seems necessary to adjust, vary, or increase the time allotted to either party, or otherwise take action regarding a child, each of the parties shall act in the best interests of the child. Neither party shall do anything which may estrange the other from the child, injure the child's opinion of the other party, or which will hamper the free and natural development of the child for the other party.
11. The parent with primary physical custody shall notify the friend of the court in writing whenever the address of a minor child changes. The domicile of the minor child may not be moved from the State of Michigan without prior approval of the court.
- ☐ 12. The Uniform Child Support Order is incorporated by reference (form FOC 10/52).
13. Except as provided in item 14, neither parent shall exercise parenting time in a foreign country/nation that is not a party to the Hague Convention on the Civil Aspects of International Child Abduction.
- ☐ 14. Based on written agreement of the parties, _____ may
Name
exercise parenting time in _____, which is not a party to the Hague
Name of foreign country/nation
Convention on the Civil Aspects of International Child Abduction.
- ☐ 15. This order resolves the dispute between the parties and is effective and final upon its date of entry. (NOTE: Only check this item if "final" is checked in the caption.)

Plaintiff (if consent/stipulation)	Date	Defendant (if consent/stipulation)	Date
Plaintiff's attorney	Date	Defendant's attorney	Date

Prepared by: _____
Name (type or print)

Judge signature and date

CERTIFICATE OF MAILING

I served a copy of this order on the parties or their attorneys by first-class mail addressed to their last-known addresses as defined by MCR 3.203. I declare under the penalties of perjury that this certificate of mailing has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Date

Signature